

LEXINGTON INSURANCE COMPANY et al. v. DRESSER-RAND CO. et al.
Case No. CU25-03193

Application of C. Scott Toomey to Appear Pro Hac Vice

TENTATIVE RULING:

The unopposed application of C. Scott Toomey to appear pro hac vice as counsel for SIEMENS ENERGY, INC. is **GRANTED**. The lodged order shall be processed forthwith.

KAINOA RUBIN on behalf of himself and all others similarly situated v. WB WAREHOUSING & LOGISTICS, INC., ET AL.
Case No. CU24-04761

Motion for Final Approval of Class Action and PAGA Settlement.

TENTATIVE RULING:

Parties to appear.

This matter was reassigned to Department 8 after the motion for preliminary approval of the class action settlement was granted by Department 10 on October 21, 2025.

Plaintiff KAINOA RUBIN moves for final approval of the settlement reached with Defendant WB WAREHOUSING & LOGISTICS. The settlement concerns a class action involving alleged wage and hour violations, unreimbursed business expenses and violation of Business and Professions Code sections 17200 et seq. It also involves PAGA penalties.

The court has not received opposition to the motion.

In a class action the court has broad discretion to determine whether a settlement was fair and reasonable. (*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1389.) In reviewing the fairness of a settlement due regard must be given to what is otherwise a private, consensual agreement between parties. (*Ibid.*) Review for fairness is limited to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud, overreaching, or collusion and that the settlement as a whole is fair and reasonable to all concerned. (*Ibid.*) Considering reasonableness means weighing factors such as the strength of the plaintiffs' case, the risk and expense of further litigation, the amount of settlement, the risk of maintaining class action status through trial, the experience of counsel, the presence of a governmental participant, and class members' opinions of the settlement. (*Ibid.*) Fairness is presumed where a settlement is the product of arm's-length negotiation conducted after sufficient investigation and discovery to allow intelligent decisions, counsel is experienced in similar litigation, and the percentage of objectors is small. (*Ibid.*)

The class is 68 (previously 74) members representing non-exempt hourly employees of Defendant who worked between June 18, 2020 and July 5, 2025. The average payment to each class member will be \$2,880 with the lowest at \$25.30 and the greatest at \$6,680. The parties accepted a mediator's proposal from experienced mediator Daniel Turner. The settlement of \$350,000 represents 74% of Plaintiff's risk-adjusted evaluation of the claims valued at \$472,652 after examining a sampling of employer documentation. (Bokhour Decl. ¶¶ 31, 32.) The settlement is fair, reasonable, and not the product of fraud, overreach, or collusion - especially given that it was achieved after arm's-length mediation.

There were no objections to the proposed settlement, no requests for exclusions and only 1 class member whose notice was returned undeliverable despite skip trace efforts.

The court finds a service award to the named plaintiff of \$6,000 is reasonable given the number of hours, actual results and efforts expended. (Notably, the preliminary moving papers sought a service award of \$7,500, but the final sought \$10,000. See 10/21/25 Bokhour Decl., ¶ 39 and 5/6/26 Bokhour Decl. ¶ 14.) Given the representative's total contribution between 25-30 hours, this rewards him up to \$240 per hour for his claimed time in addition to his recovery as a member of the class. (It is not credible that the representative believed he assumed a risk to cover costs or attorneys' fees of opposing party if this case was unsuccessful given the nature of the contingency agreement and class counsel's representation.)

The costs of the settlement administrator of \$5,500 are reasonable.

The court approves the PAGA settlement of \$10,000 with \$7,500 paid to LWDA and \$2500 allocated to 39 aggrieved employees.

While counsel is experienced in this type of litigation, one-third of the gross settlement for attorneys' fees is excessive given the total amount of the settlement, the desire to ensure sums are received by the allegedly damaged individuals, the cookie-cutter nature of the litigation, and the absence of active, contested litigation. All appearances were remote. Attention to detail was sometimes lacking likely attributed to the cookie-cutter nature of the litigation (i.e. inconsistency with enhancement, using Dept. 6 on notice, failing to appear at case management conference, referring to wrong assigned judge in notices).

The court awards 25% or \$87,500 in attorneys' fees. This sum results in a rate of \$600 per hour for the estimated 145.50 hours invested into this case by class counsel which is a reasonable lodestar. \$725-750 per hour representing Los Angeles rates is not consistent with Solano County rates and fee awards in similar cases. Wage and hour class and PAGA actions are no longer considered specialized but have become fairly routine with significant competition in the field.

The court approves \$12,038 in reimbursement for reasonable costs incurred by plaintiff's counsel.

Hearing to confirm final distribution of funds, including final deposit of any unclaimed funds with the State Controller, is set for **January 14, 2027, at 8:30 a.m.** A declaration confirming compliance, including final disposition of any unclaimed proceeds, shall be filed 15 days prior to the hearing.

Plaintiff shall prepare the order after hearing and judgment incorporating Code of Civil Procedure section 664.6 *which shall be approved as to form by defense counsel* pursuant to Cal. Rules of Court, rule 3.1312(e) prior to submission to the court.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002